

CERRUTI v. DEVOTO et al

21CV45366

**PLAINTIFFS' MOTION FOR LEAVE TO FILE
FIRST AMENDED COMPLAINT**

This is an unlimited jurisdiction quiet title action involving potential clouds over the chain of title associated with APN 052-016-009, commonly referred to as the Garibaldi Quartz Lode Mining Claim, Lot Number 45, Survey No. 3502 embracing a portion of Section 24, Township 3 North of Range 12 East M.D.M. in the Angels Mining District, Calaveras County, California (hereinafter referred to as "subject property"). There is a related action (17CV42758).

Before the Court is a motion by plaintiff for leave to file a First Amended Complaint. No opposition is noted, though it is further noted that plaintiffs have not served any of the defendants and apparently intend to seek permission to serve by publication at some point into the future. Since plaintiffs "may amend [their] pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed," and since none of those events occurred, there is no need to seek leave of Court and plaintiffs can simply file a First Amended Complaint. (See, *e.g.*, *Hedwell v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 573-575.) However, since plaintiffs are here seeking judicial intervention, it is important to point out that counsel's declaration does not adequately track CRC 3.1324. In addition, while counsel's candor regarding the impetus behind the newly-filed 2021 case is much appreciated, the named parties in the 2017 action were already dismissed, and the current parties in the 2021 action (Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer) were entitled as a matter of law to dismissal in the 2017 action for failure to effectuate service of the summons. (See CCP §§ 583.210, 583.250.) This is a mandatory dismissal without many exceptions. (See *Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061.) Moreover, the statute provides that "no further proceedings shall be held in the action." (§583.250(a)(1).) Thus, it appears as though most of the 2021 action – including the desire to add more parties – would ultimately be improper. The fact that some or many of the defendants will not make a claim to the property and could serve simply as nominal parties is important (i.e., Vickie already giving a quit claim), but that is not to be assumed at this juncture. Plaintiffs will either have to navigate around estoppel issues or secure consent from the others for the sake of having a clean title.

Motion for leave to file a First Amended Complaint is deemed MOOT and not ruled upon as plaintiffs can proceed without leave of court. The Clerk shall provide notice of this Ruling to the parties forthwith. No further order is required.

GRANADA v. BURGESS et al

21CV45760

PLAINTIFF'S DISCOVERY MOTIONS

This is a construction defect and breach of contract dispute involving a residential roofing project. Before the Court are the following discovery motions, directed at co-defendant Level 1 Roofing: (1) plaintiff's motion to compel initial responses to Form Interrogatories; (2) plaintiff's motion to compel initial responses to requests for production of documents; and (3) plaintiff's motion to deem admitted matters contained in requests for admissions. Plaintiff also seeks monetary sanctions. There is no opposition on file.

First, the discovery motion is technically deficient in that it combines three distinct motions in one. (See CCP §1003.) Pursuant to Govt Code §70617, plaintiff was required to tender \$60 for each motion seeking an order even if the motions are heard together. In other words, although one commingled memorandum is permissible (CRC 3.1112(c)), counsel still had to tender three filing fees. Plaintiff is directed to the clerk's office to pay the requisite additional \$120 in filing fees.

As for the motions themselves, service is defective. The proof of service on the motion indicates service upon Level 1 Roofing's Chief Executive Officer at two different mail addresses (Murietta and Loomis). Pursuant to CCP §1015, "in all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party." Although counsel for Level 1 Roofing did secure an order allowing it to withdraw its representation of Level 1 Roofing just six days prior to the pending motion being served, Carno Law Group did not file the required proof of service and as such is still counsel of record for Level 1 Roofing. (See Order Paragraph 5.a. and CRC 3.1362(e).)

Finally, there is a disconnect regarding service of the discovery requests themselves. The papers reflect that the discovery was served on Carno Law Group, as would be expected. There is further evidence in the papers that Carno Law Group was working on draft responses for, and communicating with, the client in early 2023. However, the law firm's motion to withdraw was based in part on a lack of regular contact with defendant. The sum total of all this is that this Court will require evidence that Level 1 Roofing actually knew about the discovery before imposing sanctions. An order compelling a response is warranted, but sanctions (or the order deeming admitted) on the present record are unjust.

Motion GRANTED in part. Defendant Level 1 Roofing is hereby ordered to serve verified *answers* to plaintiff's form interrogatories, response and production of